

3.1.2 Vegetation Clearing Requiring a Permit

A **Vegetation Clearing Permit** is required to clear:

- (i) Native vegetation on land identified as 'Biodiversity' on the Terrestrial Biodiversity Map in WLEP; or
- (ii) Vegetation larger than 500m² on land identified as 'Biodiversity Habitat Corridor' in WDCP; or
- (iii) Any tree that has a height of three (3) metres or more; or
- (iv) Any tree that has a canopy spread of three (3) metres or more.

Note: **Development consent** (via a Development Application) is required for clearing:

- (i) Done in conjunction with development that requires consent under Part 4 of the EP&A Act;
- (ii) Of a tree listed on the Waverley Significant Tree Register;
- (iii) Of any vegetation that forms part of a Heritage Item or is within a Heritage Conservation area (refer to Clause 5.10(2) of WLEP);
- (iv) Of vegetation that is an Aboriginal object or that is located in an Aboriginal place of heritage significance.

Where a development has any potential impact on existing trees an arborist report must be submitted.

Tree Assessment

When an application for consent, or a Vegetation Clearing Permit is made, one of Council's qualified arborists will inspect any tree/s to be cleared and undertake a Visual Tree Assessment (VTA). This is a widely accepted arboricultural assessment based on the current health, structural integrity, useful life expectancy and visible damage of the tree. Additional criteria are also taken into consideration including:

- Landscape significance including consideration of the ecological, cultural and amenity value of trees;
- the effect on the health of the tree from pruning;
- whether the tree shows poor form and shape/vigour typical of the species;
- its location within 3 metres of a residence, main building or other significant structure;
- the occurrence (or lack of) other vegetation nearby and whether appropriate replacement species can be planted;
- whether the tree is the identified cause of structural damage to a building, ancillary structure, water main or sewer and if all alternative options of remedying the damage have been considered.

After assessment, the application will either be:

- a. approved; or approved with conditions
- b. pending; awaiting further information or supporting evidence from the applicant
- c. refused; or refused with conditions.

Any application for a Vegetation Clearing Permit should be accompanied with supporting information/evidence such as documented and photographic history of branch failures, the weather conditions at the time of the branch failure; sewer blockages etc.